

24NWLC05362 24NWLC05362

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24NWLC05362 Hearing Date: September 14, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SOCAL

LIEN SOLUTIONS LLC

Plaintiff,

vs.

COUNTRYWIDE

DEVELOPMENT & CONTRACTING, INC., et al.,

Defendants.

Case No.:

24NWLC05362

Hearing

Date:

September

14, 2026

ORDER
DENYING MOTION TO EXPUNGE MECHANIC'S
LIEN AND GRANTING MOTION TO
EXPUNGE LIS PENDENS

I. BACKGROUND

This is real property action arising out of alleged failure to pay for drywall work done to the 1298 W 37th St, Los Angeles, CA 90007, property ("subject property") by Plaintiff SoCal Lien Solutions, LLC's ("SoCal") assignee. SoCal sued Defendants for five causes of action, including breach of contract.

Defendants

Campus Rentals LLC ("Campus") and Countrywide Development & Contracting Inc. ("CDC") filed a Cross-Complaint against SoCal and New Concept Drywall, Inc. ("NC") for four causes of action, including breach of contract.

Named defendants were dismissed on April 15, 2026. Doe Defendants have not been dismissed.

On November 15, 2023, NC filed a mechanic's lien against the subject property.

On March 8, 2024, SoCal filed a lis pendens for the subject property.

On July 2, 2026, Campus filed the instant motion to expunge NC's mechanic's lien.

On August 19, 2026, Campus filed the instant motion to expunge lis pendens.

II. LEGAL STANDARD

California Civil Code section 8480 provides that the owner of property may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to

enforce the lien within the time provided in section 8460. (Civ. Code § 8480(a).) Section 8460 provides that “[t]he claimant shall commence an action to enforce a lien within 90 days after recordation of the claim of lien.” (Id., § 8460(a).) Section 8460 further provides that “[i]f the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable.” It also provides that the 90-day time limit to commence an action to enforce a lien does not apply if there was an agreement to extend credit and a notice of that fact was recorded within 90 days after recordation of the claim of lien or more than 90 days after recordation of the claim of lien but before a purchaser or encumbrancer for value and in good faith acquires rights in the property.

A property owner may not petition for a release order until he or she gives the claimant notice demanding that the claimant execute and record a release of lien claim at least ten days before filing the petition. (Civ. Code § 8482.) A petition for a release order must be verified and include all of the following: (1) the date of recordation of the claim of lien, with a certified copy of the lien attached; (2) the county in which the claim of lien is recorded; (3) the book and page or series number of the place in the official records where the claim of lien is recorded; (4) the legal description of the property subject to the claim; (5) whether an extension of credit has been granted and if so to what date and that the time for commencement of an action to enforce the lien has expired; (6) that the owner has given the claimant notice under section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found; (7) whether an action to enforce the lien is pending; and (8) whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien. (Civ. Code § 8484.)

A

lis pendens is an instrument recorded in the office of the county recorder that gives constructive notice of a pending lawsuit affecting title to the real property described in the lis pendens. (Gale v. Superior Court (2004) 122 Cal.App.4th 1388, 1395.) The pleadings in the lawsuit to which the lis pendens refers must describe a specific parcel of real property and must state a “real property claim.” (Ibid.; Code of Civil Procedure § 405.1[1].) For purposes of expunging a lis pendens, a real property claim is a

cause of action that, if successful, would affect title to or the right of possession of specific real property or the use of an easement identified in a pleading. (§§ 405.2, 405.4.)

Where

a motion to expunge a lis pendens has been filed, the proponent of the lis pendens carries the burden of showing evidence that the lis pendens is supported by a real property claim which is probably valid. (§§ 405.30, 405.32; *Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 70-71 (*Hunting World*)). Where a party does not establish the probable validity of their claim underpinning a lis pendens by a preponderance of the evidence, the lis pendens shall be expunged. (§ 405.32.)

III. DISCUSSION

A. Service

At the previous hearing on the motions, the Court continued the hearing due to a lack of proof of service of the Cross-Complaint on Cross-Defendant Balam Arturo Cardenas Zotelo dba New Concepts Drywall ("NC"). As of August 28, 2026, Campus filed proof of service on NC for the Cross-Complaint, resolving service issues.

B. Motion

to Expunge Mechanic's Lien

Campus requests the Court expunge NC's mechanic's lien filed on November 15, 2023, as Instrument No. 20230789692 in the Official Records of Los Angeles County against the subject property. Campus also requests an award of attorney's fees and in the amount of \$2,992.80 for bringing this motion.

However, Campus only requests the Court expunge the mechanic's lien under sections 405.31 and 405.32, both of which only grant the Court the right to expunge a lis pendens. These sections do not apply to mechanic's liens. Campus has provided no legal basis for the Court to expunge the subject lien. Therefore, the Court denies the motion and attorney fees as to the mechanic's lien.

C. Motion

to Expunge Lis Pendens

Campus requests the Court expunge SoCal's

Notice of Pendency of Action [lis pendens] filed on March 8, 2024, in this case, against the subject property. Campus also requests an award of attorney's fees and in the amount of \$2,992.80 for bringing this motion. "A court shall order a notice of lis pendens expunged if it determines (1) that the pleading on which the notice is based does not contain a real property claim (§ 405.31); (2) that the claimant has not established, by a preponderance of the evidence, the probable validity of a real property claim (§ 405.32); or (3) that adequate relief can be secured by an undertaking. (§ 405.33.)." (Shoker v. Superior Court of Alameda County (2022) 81 Cal.App.5th 271, 277.)

Campus asserts SoCal cannot maintain a lis pendens because SoCal dismissed their complaint, which was the only pleading that supported a real property claim in regard to the subject property. The pleadings in the lawsuit to which the lis pendens refer must describe a specific parcel of real property and must state a "real property claim." (§ 405.1.) For purposes of expunging a lis pendens, a real property claim is a cause of action that, if successful, would affect title to or the right of possession of specific real property or the use of an easement identified in a pleading. (§§ 405.2, 405.4.) To determine whether the complaint involves a real property claim, the court considers the allegations of the complaint. (Urez Corp. v. Superior Court (1987) 190 Cal.App.3d 1141, 1149.) ["The issue is simply whether the action as pleaded is one that affects title or possession of the subject property."]

Here, it is undisputed only the underlying complaint concerned a real property claim. Campus's Cross-Complaint only has causes of action for breach of contract, specifically alleging NC failed to complete work under subcontract as outlined by contract. Although the relevant contract relates to work performed on the subject property, it does not affect title or possession of the subject property. Therefore, only SoCal's complaint is potentially relevant to the lis pendens claim. SoCal's complaint has been dismissed. Therefore, there are no currently pending pleadings that state a "real property claim" against the subject property; notice is proper for expungement pursuant to section 405.31. It is also proper for expungement under section 405.32, as SoCal has not established, by preponderance of the evidence, the probable validity of the

real property claim as SoCal has dismissed its claims. Therefore, the Court grants the motion.

D. Attorney

Fees

The Court "shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (§ 405.38.)

Given the fact no party opposes this motion, the Court does not find substantial justification in SoCal maintaining the lis pendens following the request for dismissal, as, at that point, SoCal was aware they had no viable property claims. Therefore, the Court awards attorney fees.

Campus requests attorney's fees totaling \$2,992.80, based upon \$2,730.00 in attorney fees and \$262.80 in filing costs. The Court first notes, outside of identifying 1 hour will be spent at the hearing on the motion, Campus did not provide information as to time spent on the motion; it is unclear if the allotted time is based upon attorney time or paralegal time. Absent this information, the Court finds the total requested attorney's fees unwarranted. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 ["When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value."].) The Court also finds the motion filing fees, nearly \$200.00 over the usual request for filing fees, to be unsupported by the evidence. Instead, the Court imposes sanctions of \$960.00, based upon 3 hours of attorney's work at a rate of \$300.00 per hour and 1 \$60.00 filing fee.

IV. CONCLUSION

Based on the foregoing, Campus's motion to expunge NC's mechanic's lien is DENIED.

Campus's motion to expunge lis pendens is GRANTED.

SoCal may not file another lis pendens

regarding the subject property without first seeking leave of court.

SoCal and counsel of record are ordered to pay attorney's fees in the amount of \$960.00 within 30 calendar days of this order.

Moving Party is ordered to give notice.

DATED:

September 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.